

Vinay Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 July 2014 · Criminal Misc. Writ Petition No. 12407 of 2014 · **s.135 FIR quash refused; CrPC 41/41-A directed; compounding left to Supply Code**

HEADNOTE

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not quashed. If arrest is to be made and the offence will not entail a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C.; a breach may be complained of to the Magistrate. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Vinay Pandey filed a criminal miscellaneous writ petition seeking to quash an FIR dated 29 April 2013, registered as Case Crime No. 226 of 2013 under Section 135 of the Electricity Act, 2003 at Police Station Raunapar, District Azamgarh. He had not been arrested. Counsel also urged that even if the charge were proved a sentence of more than seven years could not be awarded, so arrest should not be mechanical, and that the alleged offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR — quash, arrest safeguards, compounding

HOLDING

Where an FIR under Section 135 of the Electricity Act, 2003 discloses a cognizable offence, the High Court will not quash it. Arrest not having been made, a mere apprehension of breach of Section 41(1)(b) read with Section 41-A Cr.P.C. does not warrant interference; those provisions are expected to be followed, and a violation may be complained of before the Magistrate. If arrest is to be effectuated and the offence will not entail a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A Cr.P.C. If the offence is compoundable, the accused may seek the remedy provided under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

Quash of the s.135 FIR refused because it disclosed a cognizable offence; any arrest for an offence not entailing more than seven years' sentence must follow CrPC 41(1)(b)/41-A; compounding, if available, is to be sought under the Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE WAS COMPOUNDABLE ON THE FACTS, AND COMPOUNDING ON MERITS

The Court said only that if the offence is compoundable the petitioner may seek the Supply Code, 2005 remedy. ¶ 1